BRENDAN NGEHSI NEWANFORBI
Plaintiff, In Propria Persona
1455 Cat Tail Drive
Stockton, CA 95204
Telephone: (209) 801-4442
E-mail: bnn.cdl@gmail.com

UNITED STATES DISTRICT COURT

NORTHERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI, Plaintiff, v. **SHANNON SMITH, LCSW, Chief Executive Officer and Founder of HOPE Program, an individual; and HOPE PSYCHOTHERAPY, INC., d/b/a HOPE PROGRAM, a California corporation,** Defendants.	Case No. 3:26-cv-07504-LJC **PLAINTIFF'S FIRST SET OF REQUESTS FOR ADMISSION TO DEFENDANT SHANNON SMITH, LCSW** Set No.: 1 (Fed. R. Civ. P. 26, 36) Judge: Hon. Lisa J. Cisneros

PLAINTIFF'S FIRST SET OF REQUESTS FOR ADMISSION TO DEFENDANT SHANNON SMITH, LCSW

TO DEFENDANT SHANNON SMITH, LCSW AND HER ATTORNEYS OF RECORD:

Under Federal Rules of Civil Procedure 26 and 36, Plaintiff Brendan Ngehsi Newanforbi requests that Defendant Shannon Smith, LCSW admit, in writing and under Rule 36, the truth of each matter below, and serve a written response on Plaintiff within thirty (30) days after service.

INSTRUCTIONS

1. Each matter is admitted unless, within 30 days after service, you serve a written answer or objection signed under Rule 26(g) (Fed. R. Civ. P. 36(a)(3)).

2. A denial must fairly respond to the substance of the matter; when good faith requires, specify the part admitted and qualify or deny only the rest (Rule 36(a)(4)).

3. You may assert lack of knowledge only if you state that you have made reasonable inquiry and that the information you know or can readily obtain is insufficient (Rule 36(a)(4)).

4. A party that fails to admit a matter later proved may be ordered to pay the reasonable expenses of proof (Rule 37(c)(2)).

DEFINITIONS

"YOU" and "YOUR" means Defendant Shannon Smith, LCSW, and anyone acting on her behalf.

"PLAINTIFF" means Brendan Ngehsi Newanforbi.

"HOPE" means Defendant HOPE Psychotherapy, Inc. (d/b/a HOPE Program, appearing as HOPE Program, A Licensed Clinical Social Worker Professional Corporation), including its officers, employees, and agents, and any management or records contractor acting for it.

"SMITH" means Defendant Shannon Smith, LCSW.

"CDCR" means the California Department of Corrections and Rehabilitation, including its

Division of Adult Parole Operations (DAPO) and any parole agent or supervisor.

"CTM" means a Containment Team Meeting or similar case conference among a treatment provider, CDCR, and/or a polygraph examiner concerning a parolee.

"COMPLETION DETERMINATION" means any recommendation, decision, or report about whether a parolee has completed, graduated from, or may be discharged or titrated from sex-offender treatment, including any statement that the parolee has not completed treatment.

"SAN JOAQUIN ACTION" means Newanforbi v. Palacios et al., San Joaquin County Superior Court, in which HOPE was a party.

"STOCKTON SITE" means HOPE's Stockton, California treatment location.

"DOCUMENT" means has the full meaning of Fed. R. Civ. P. 34(a)(1)(A), including electronically stored information (ESI) such as email, text and app-based messages, EHR entries, audit logs, and audio or video recordings.

"COMMUNICATION" means any transmission of information by any means, including email, text or app message (on any device, including a personal device used for work), letter, portal message, and recorded meeting.

"IDENTIFY" means (a) for a person: full name, last known employer, title, and business contact; (b) for a DOCUMENT: type, date, author, recipients, and Bates number if produced.

"RELEVANT PERIOD" means January 1, 2021 to the date of response, unless a request states otherwise.

REQUESTS FOR ADMISSION

REQUEST FOR ADMISSION NO. 1:

You were HOPE's chief executive officer throughout the RELEVANT PERIOD.

REQUEST FOR ADMISSION NO. 2:

You had final authority over HOPE's treatment-completion policies for parolees during the RELEVANT PERIOD.

REQUEST FOR ADMISSION NO. 3:

You approved HOPE's treatment-completion policy for parolees in effect before October 2024.

REQUEST FOR ADMISSION NO. 4:

You approved the change to HOPE's treatment-completion or aftercare policy that occurred in or about October 2024.

REQUEST FOR ADMISSION NO. 5:

You did not cause HOPE to change any treatment-completion policy after April 17, 2025.

REQUEST FOR ADMISSION NO. 6:

You knew before January 1, 2025 that HOPE did not recommend completion for parolees on active parole supervision.

REQUEST FOR ADMISSION NO. 7:

You knew during the RELEVANT PERIOD that HOPE's reports to CDCR could affect the conditions of a parolee's supervision.

REQUEST FOR ADMISSION NO. 8:

You communicated with CDCR personnel during the RELEVANT PERIOD about treatment-completion or aftercare policy for parolees.

REQUEST FOR ADMISSION NO. 9:

You were not a party to the SAN JOAQUIN ACTION.

REQUEST FOR ADMISSION NO. 10:

No claim against you personally was adjudicated in the SAN JOAQUIN ACTION.

REQUEST FOR ADMISSION NO. 11:

You did not control HOPE's defense of the SAN JOAQUIN ACTION.

REQUEST FOR ADMISSION NO. 12:

You were aware of the In re Dwyer habeas proceeding before PLAINTIFF filed the SAN JOAQUIN ACTION.

REQUEST FOR ADMISSION NO. 13:

You were aware of the April 17, 2025 amendments to Cal. Code Regs., tit. 15, section 3574 before PLAINTIFF filed the SAN JOAQUIN ACTION.

REQUEST FOR ADMISSION NO. 14:

You used a personal device or personal account for HOPE business communications during the RELEVANT PERIOD.

REQUEST FOR ADMISSION NO. 15:

You have not issued a litigation hold covering text messages concerning PLAINTIFF.

REQUEST FOR ADMISSION NO. 16:

You held an ownership interest in HOPE during the RELEVANT PERIOD.

REQUEST FOR ADMISSION NO. 17:

You had authority to require an internal review of a client complaint concerning HOPE personnel during the RELEVANT PERIOD.

Dated: _____, 2026

Respectfully submitted,

_____

BRENDAN NGEHSI NEWANFORBI

Plaintiff, In Propria Persona

UNITED STATES DISTRICT COURT
NORTHERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI
Plaintiff

Case Number: 3:26-cv-07504-LJC

V.

SHANNON SMITH, LCSW;
HOPE PSYCHOTHERAPY, INC.
Defendants

PROOF OF SERVICE

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I hereby certify that on *(Date)* , I served a copy of the attached

PLAINTIFF'S FIRST SET OF REQUESTS FOR ADMISSION TO DEFENDANT SHANNON SMITH, LCSW,

by transmitting a true copy by electronic mail (PDF attachments) to the e-mail address(es) hereinafter listed:

(List Name and E-mail Address of Each Defendant or Attorney Served)

Cynthia G. Lawrence, Esq. — cynthia@sims-law.net
Blaze Van Dine, Esq. — blaze@sims-law.net
Eric T. Martinez, Esq. — emartinez@sims-law.net
Sims, Lawrence & Broghammer (e-service) — slb-eservice@sims-law.net

Attorneys for Defendants Shannon Smith, LCSW, and
HOPE Psychotherapy, Inc. (d/b/a HOPE Program)

Service by electronic means under Fed. R. Civ. P. 5(b)(2)(E),
pursuant to the written consent of counsel for Defendants.

UNITED STATES DISTRICT COURT
NORTHERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI
v.
SHANNON SMITH, LCSW et al.

Case Number: 3:26-cv-07504-LJC
PROOF OF SERVICE
(continued)

The names and addresses of the persons served appear on page 1.

I declare under penalty of perjury that the foregoing is true and correct.

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Brendan Ngehsi Newanforbi, In Propria Persona